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LEARNING RESOURCES, INC., ET AL. *v.* TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.

CERTIORARI BEFORE JUDGMENT TO THE UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 24–1287. Argued November 5, 2025—Decided February 20, 2026*

The question presented is whether the International Emergency Economic Powers Act (IEEPA) authorizes the President to impose tariffs. See 91 Stat. 1626. Shortly after taking office, President Trump sought to address two foreign threats: the influx of illegal drugs from Canada, Mexico, and China, Presidential Proclamation No. 10886, 90 Fed. Reg. 8327; Exec. Order No. 14193, 90 Fed. Reg. 9113; Exec. Order No. 14194, 90 Fed. Reg. 9117; Exec. Order No. 14195, 90 Fed. Reg. 9121, and "large and persistent" trade deficits, Exec. Order No. 14257, 90 Fed. Reg. 15041. The President determined that the drug influx had "created a public health crisis," 90 Fed. Reg. 9113, and that the trade deficits had "led to the hollowing out" of the American manufacturing base and "undermined critical supply chains," *id.*, at 15041. The President declared a national emergency as to both threats, deeming them "unusual and extraordinary," and invoked his authority under IEEPA to respond.

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He imposed tariffs to deal with each threat. As to the drug trafficking tariffs, the President imposed a 25% duty on most Canadian and Mexican imports and a 10% duty on most Chinese imports. *Id.*, at 9114, 9118, 9122–9123. As to the trade deficit ("reciprocal") tariffs, the President imposed a duty "on all imports from all trading partners" of at least 10%, with dozens of nations facing higher rates. *Id.*, at 15045, 15049. Since imposing each set of tariffs, the President has issued several increases, reductions, and other modifications.

Petitioners in *Learning Resources* and respondents in *V.O.S. Selections* filed suit, alleging that IEEPA does not authorize the reciprocal or drug trafficking tariffs. The *Learning Resources* plaintiffs—two small businesses—sued in the United States District Court for the District of Columbia. That court denied the Government's motion to transfer the case to the United States Court of International Trade (CIT) and granted the plaintiffs' motion for a preliminary injunction, concluding that IEEPA did not grant the President the power to impose tariffs.

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*Together with No. 25–250, *Trump, President of the United States, et al.* v. *V.O.S. Selections, Inc., et al.*, on certiorari to the United States Court of Appeals for the Federal Circuit.

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The *V.O.S. Selections* plaintiffs—five small businesses and 12 States—sued in the CIT. That court granted summary judgment for the plaintiffs. And the Federal Circuit, sitting en banc, affirmed in relevant part, concluding that IEEPA's grant of authority to "regulate . . . importation" did not authorize the challenged tariffs, which "are unbounded in scope, amount, and duration." 149 F. 4th 1312, 1338. The Government filed a petition for certiorari in *V.O.S. Selections*, and the *Learning Resources* plaintiffs filed a petition for certiorari before judgment. The Court granted the petitions and consolidated the cases.

Held: IEEPA does not authorize the President to impose tariffs. The judgment in No. 24–1287 is vacated, and the case is remanded with instructions to dismiss for lack of jurisdiction; the judgment in No. 25–250 is affirmed.

No. 24–1287, 784 F. Supp. 3d 209, vacated and remanded; No. 25–250, 149 F. 4th 1312, affirmed.

THE CHIEF JUSTICE delivered the opinion of the Court with respect to Parts I and II–A–1:

Article I, Section 8, of the Constitution specifies that "The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises." The Framers recognized the unique importance of this taxing power—a power which "very clear[ly]" includes the power to impose tariffs. *Gibbons* v. *Ogden*, 9 Wheat. 1, 201. And they gave Congress "alone . . . access to the pockets of the people." The Federalist No. 48, p. 310 (J. Madison). The Framers did not vest any part of the taxing power in the Executive Branch. See *Nicol* v. *Ames*, 173 U. S. 509, 515.

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The Government thus concedes that the President enjoys no inherent authority to impose tariffs during peacetime. It instead relies exclusively on IEEPA to defend the challenged tariffs. It reads the words "regulate" and "importation" to effect a sweeping delegation of Congress's power to set tariff policy—authorizing the President to impose tariffs of unlimited amount and duration, on any product from any country. 50 U. S. C. § 1702(a)(1)(B). Pp. 240–242.

THE CHIEF JUSTICE, joined by JUSTICE GORSUCH and JUSTICE BARRETT, concluded in Part II–A–2:

The Court has long expressed "reluctan[ce] to read into ambiguous statutory text" extraordinary delegations of Congress's powers. *West Virginia* v. *EPA*, 597 U. S. 697, 723 (quoting *Utility Air Regulatory Group* v. *EPA*, 573 U. S. 302, 324). In several cases described as involving "major questions," the Court has reasoned that "both separation of powers principles and a practical understanding of legislative intent" suggest Congress would not have delegated "highly consequential power" through ambiguous language. 597 U. S., at 723–724. These consider-

ations apply with particular force where, as here, the purported delegation involves the core congressional power of the purse. Congressional practice confirms as much. When Congress has delegated its tariff powers, it has done so in explicit terms and subject to strict limits.

Against that backdrop of clear and limited delegations, the Government reads IEEPA to give the President power to unilaterally impose unbounded tariffs and change them at will. That view would represent a transformative expansion of the President's authority over tariff policy. It is also telling that in IEEPA's half century of existence, no President has invoked the statute to impose *any* tariffs, let alone tariffs of this magnitude and scope. That "'lack of historical precedent,' coupled with the breadth of authority" that the President now claims, suggests that the tariffs extend beyond the President's "legitimate reach." *National Federation of Independent Business* v. *OSHA*, 595 U. S. 109, 119 (quoting *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477, 505). The "'economic and political significance'" of the authority the President has asserted likewise "provide[s] a 'reason to hesitate before concluding that Congress' meant to confer such authority." *West Virginia*, 597 U. S., at 721 (quoting *FDA* v. *Brown & Williamson Tobacco Corp.*, 529 U. S. 120, 159–160). The stakes here dwarf those of other major questions cases. And as in those cases, "a reasonable interpreter would [not] expect" Congress to "pawn[ ]" such a "big-time policy call[ ] . . . off to another branch." *Biden* v. *Nebraska*, 600 U. S. 477, 515 (BARRETT, J., concurring).

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There is no exception to the major questions doctrine for emergency statutes. Nor does the fact that tariffs implicate foreign affairs render the doctrine inapplicable. The Framers gave "Congress alone" the power to impose tariffs during peacetime. *Merritt* v. *Welsh*, 104 U. S. 694, 700. And the foreign affairs implications of tariffs do not make it any more likely that Congress would relinquish its tariff power through vague language, or without careful limits. Accordingly, the President must "point to clear congressional authorization" to justify his extraordinary assertion of that power. *Nebraska*, 600 U. S., at 506 (internal quotation marks omitted). He cannot. Pp. 242–248.

THE CHIEF JUSTICE delivered the opinion of the Court with respect to Part II–B, concluding:

(a) IEEPA authorizes the President to "investigate, block during the pendency of an investigation, regulate, direct and compel, nullify, void, prevent or prohibit . . . importation or exportation." § 1702(a)(1)(B). Absent from this lengthy list of specific powers is any mention of tariffs or duties. Had Congress intended to convey the distinct and extraordinary power to impose tariffs, it would have done so expressly, as it consistently has in other tariff statutes.

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The power to "regulate . . . importation" does not fill that void. The term "regulate," as ordinarily used, means to "fix, establish, or control; to adjust by rule, method, or established mode; to direct by rule or restriction; to subject to governing principles or laws." Black's Law Dictionary 1156. The facial breadth of this definition places in stark relief what "regulate" is not usually thought to include: taxation. Many statutes grant the Executive the power to "regulate." Yet the Government cannot identify any statute in which the power to regulate includes the power to tax. The Court is therefore skeptical that in IEEPA—and IEEPA alone—Congress hid a delegation of its birth-right power to tax within the quotidian power to "regulate."

While taxes may accomplish regulatory ends, it does not follow that the power to regulate includes the power to tax as a means of regulation. Indeed, when Congress addresses both the power to regulate and the power to tax, it does so separately and expressly. That it did not do so here is strong evidence that "regulate" in IEEPA does not include taxation.

A contrary reading would render IEEPA partly unconstitutional. IEEPA authorizes the President to "regulate . . . importation or exportation." § 1702(a)(1)(B). But taxing exports is expressly forbidden by the Constitution. Art. I, § 9, cl. 5.

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The "neighboring words" with which "regulate" "is associated" also suggest that Congress did not intend for "regulate" to include the revenue-raising power. *United States* v. *Williams*, 553 U. S. 285, 294. Each of the nine verbs in § 1702(a)(1)(B) authorizes a distinct action a President might take in sanctioning foreign actors or controlling domestic actors engaged in foreign commerce, as Presidential practice confirms. And none of the listed authorities includes the distinct and extraordinary power to raise revenue—a power which no President has ever found in IEEPA. Pp. 248–251.

(b) Several arguments marshaled in response are unpersuasive. First, the contention that IEEPA confers the power to impose tariffs because early commentators and the Court's cases discuss tariffs in the context of the Commerce Clause answers the wrong question. The question is not whether tariffs can ever be a means of regulating commerce. It is instead whether *Congress*, when conferring the power to "regulate . . . importation," gave the President the power to impose tariffs at his sole discretion. And Congress's pattern of usage is plain: When Congress grants the power to impose tariffs, it does so clearly and with careful constraints. It did neither in IEEPA.

Second, the argument that "regulate" naturally includes tariffs because the term lies between two poles in IEEPA—"compel" on the affirmative end and "prohibit" on the negative end—is unavailing. Al-

though tariffs may be less extreme than an outright compulsion or prohibition, it does not follow that tariffs lie on the spectrum between those poles; they are different in kind, not degree, from the other authorities in IEEPA. Tariffs operate directly on domestic importers to raise revenue for the Treasury and are "very clear[ly] . . . a branch of the taxing power." *Gibbons*, 9 Wheat., at 201. Thus, they fall outside the spectrum entirely.

Third, the argument based on IEEPA's predecessor, the Trading with the Enemy Act (TWEA), and the Court of Customs and Patent Appeals' decision in *United States* v. *Yoshida Int'l, Inc.*, 526 F. 2d 560, cannot bear the weight placed on it. A single, expressly limited opinion from a specialized intermediate appellate court does not establish a well-settled meaning that the Court can assume Congress incorporated into IEEPA.

Fourth, the historical argument based on the Court's wartime precedents fails. Those precedents are facially inapposite, as all agree the President lacks inherent peacetime authority to impose tariffs. And the attenuated chain of inferences from wartime precedents through multiple iterations of TWEA to IEEPA cannot support—much less clearly support—a reading of IEEPA that includes the distinct power to impose tariffs.

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Finally, arguments relying on this Court's precedents lack merit. *Federal Energy Administration* v. *Algonquin SNG, Inc.*, 426 U. S. 548, bears little on the meaning of IEEPA. Section 232(b) of the Trade Expansion Act of 1962 contains sweeping, discretion-conferring language that IEEPA does not contain, and the explicit reference to duties in Section 232(a) renders it natural for Section 232(b) itself to authorize duties. Nor does *Dames & Moore* v. *Regan*, 453 U. S. 654, offer support because that case was exceedingly narrow, did not address the President's power to "regulate," and did not involve tariffs at all. Pp. 251–255.

JUSTICE KAGAN, joined by JUSTICE SOTOMAYOR and JUSTICE JACKSON, agreed that IEEPA does not authorize the President to impose tariffs, but concluded that the Court need not invoke the major questions doctrine because the ordinary tools of statutory interpretation amply support that result. Pp. 304–310.

JUSTICE JACKSON would also consult legislative history—in particular, the House and Senate Reports that accompanied IEEPA and its predecessor statute, TWEA—to determine that Congress did not intend for IEEPA to authorize the Executive to impose tariffs. Pp. 310–313.

ROBERTS, C. J., announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–A–1, and II–B, in which

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SOTOMAYOR, KAGAN, GORSUCH, BARRETT, and JACKSON, JJ., joined, and an opinion with respect to Parts II–A–2 and III, in which GORSUCH and BARRETT, JJ., joined. GORSUCH, J., *post*, p. 255, and BARRETT, J., *post*, p. 300, filed concurring opinions. KAGAN, J., filed an opinion concurring in part and concurring in the judgment, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 304. JACKSON, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 310. THOMAS, J., filed a dissenting opinion, *post*, p. 313. KAVANAUGH, J., filed a dissenting opinion, in which THOMAS and ALITO, JJ., joined, *post*, p. 330.

Solicitor General Sauer argued the cause for the federal parties in both cases. With him on the briefs were *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Sopan Joshi*, *Mark R. Freeman*, *Michael S. Raab*, *Brad Hinshelwood*, and *Daniel Winik*.

Neal Kumar Katyal argued the cause for the private parties in both cases. With him on the brief in No. 25–250 were *Colleen E. Roh Sinzdak*, *Jeffrey M. Schwab*, *Michael W. McConnell*, *Steffen N. Johnson*, and *Ilya Somin*. On the brief in No. 24–1287 were *Pratik A. Shah*, *James E. Tysse*, *Matthew R. Nicely*, *Daniel M. Witkowski*, *Kristen E. Loveland*, and *Margaret O. Rusconi*.

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Benjamin Gutman, Solicitor General of Oregon, argued the cause for state respondents in No. 25–250. With him on the brief were *Dan Rayfield*, Attorney General, *Dustin Buehler*, and *Brian Simmonds Marshall*, *Christopher A. Perdue*, and *Leigh Salmon*, Senior Assistant Attorneys General, and by the Attorneys General and other officials for their respective States as follows: *Kristin K. Mayes* of Arizona, *Joshua D. Bendor*, Solicitor General, *Alexander W. Samuels*, Principal Deputy Solicitor General, and *Syreeta A. Tyrell*, Assistant Attorney General, by *Philip J. Weiser* of Colorado, and *Sarah H. Weiss*, Senior Assistant Attorney General, by *William Tong* of Connecticut, and *Michael K. Skold*, Solicitor General, by *Kathleen Jennings* of Delaware, and *Ian R. Liston* and *Vanessa L. Kassab*, Deputy Attorneys General, by *Kwame Raoul* of Illinois, and *Jane Elinor Notz*, Solicitor General, by *Aaron M. Frey* of Maine, and *Vivian*

Counsel

A. Mikhail, Deputy Attorney General, by *Keith Ellison* of Minnesota, and *Pete J. Farrell*, Deputy Solicitor General, by *Aaron D. Ford* of Nevada, and *Heidi Parry Stern*, Solicitor General, by *Raúl Torrez* of New Mexico, and *James W. Grayson*, by *Letitia James* of New York, *Ester Murdukhayeva*, Deputy Solicitor General, and *Rabia Muqaddam*, and by *Charity R. Clark* of Vermont, and *Ryan P. Kane*, Deputy Solicitor General.†

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†Briefs of *amici curiae* urging affirmance in both cases were filed for the State of California et al. by *Rob Bonta*, Attorney General of California, *Samuel T. Harbourt*, Solicitor General, *Helen H. Hong*, Principal Deputy Solicitor General, *Thomas S. Patterson*, Senior Assistant Attorney General, and *Julie Veroff* and *Diana L. Kim*, Deputy Solicitors General, *Lara Haddad*, Supervising Deputy Attorney General, and *Shiwon Choe*, *Zelda Vassar*, and *Carolyn F. Downs*, Deputy Attorneys General; for BRB Management, LLC, by *Philip J. De Koster* and *John G. De Koster*; for the Brennan Center for Justice by *Leah J. Tulin* and *Elizabeth Goitein*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Brian R. Frazelle*; for Economists by *Adam G. Unikowsky*, *Holger Spamann*, and *Debbie L. Berman*; for Emily Ley Paper, Inc., et al. by *John J. Vecchione*, *Andrew J. Morris*, and *Markham S. Chenoweth*; for Former Government Officials et al. by *Matthew A. Seligman*, *Mark Lemley*, *William H. Neukom*, *Norman L. Eisen*, and *Stephen A. Jonas*; for the Goldwater Institute et al. by *Timothy Sandefur* and *Jonathan Riches*; for National Security Officials by *Meaghan VerGow* and *Noah B. Bokat-Lindell*; for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan*; for We Pay The Tariffs by *Gilbert Lee Sandler* and *Jason M. Kenner*; for Vikram David Amar et al. by *Tadhg Dooley*; and for Julian Arato et al. by *Timothy Meyer*, *pro se*.

Briefs of *amici curiae* were filed in both cases for Advancing American Freedom et al. by *J. Marc Wheat*; for the America First Policy Institute by *Michael J. Jones* and *Alan Dershowitz*; for the American College of Tax Counsel by *John M. Colvin* and *Theodore P. Seto*; for Consumer Watchdog by *Alan B. Morrison*, *R. Will Planert*, *Donald B. Cameron*, *Harvey Rosenfield*, *William Pletcher*, and *Benjamin Powell*; for Former Senior Military Officials et al. by *Jacob W. Buchdahl*; for the Institute for Policy Integrity at New York University School of Law by *Richard L. Revesz*, *Donald L. R. Goodson*, and *Max Sarinsky*; for Members of the U. S. Congress by *William Fred Norton*, *Nathan L. Walker*, *Josephine K. Petrick*, *Celine G. Purcell*, *Rebecca Kutlow*, *Jennifer Hillman*, and *Peter*

CHIEF JUSTICE ROBERTS announced the judgment of the Court and delivered the opinion of the Court, except as to Parts II–A–2 and III.*

We decide whether the International Emergency Economic Powers Act (IEEPA) authorizes the President to impose tariffs.

Harrell; for the National Taxpayers Union Foundation by *Joseph D. Henchman*; for Professors of Administrative Law et al. by *Vincent Levy* and *Samuel Estreicher, pro se*; for Scholars of the History of Constitutional Law et al. by *Paul R. Q. Wolfson, Pooja A. Boisture*, and *Somil B. Trivedi*; for Tax Law Professors by *Steven J. Alagna*; for George F. Allen et al. by *Daniel W. Wolff*; for Aditya Bamzai, *pro se*; for Corey J. Biazzo, *pro se*; and for Scott Lincicome et al. by *Adam E. Schulman* and *Theodore H. Frank*.

Briefs of *amici curiae* urging dismissal in No. 24–1287 and reversal in No. 25–250 were filed for Rep. Darrell Issa et al. by *R. Trent McCotter* and *Daniel Z. Epstein*; and for Chad Squitieri by *R. Trent McCotter*.

William J. Olson, Jeremiah L. Morgan, and *Patrick M. McSweeney* filed a brief for America's Future as *amicus curiae* urging vacatur and remand in No. 24–1287 and reversal in No. 25–250.

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Briefs of *amici curiae* urging reversal in No. 25–250 were filed in both cases for the American Center for Law and Justice *Jay Alan Sekulow, Benjamin P. Sisney, Jordan A. Sekulow, Stuart J. Roth*, and *Andrew J. Ekonomou*; and for Jill Homan by *Brian Kelsey*.

Briefs of *amici curiae* urging affirmance in No. 25–250 were filed for the Chamber of Commerce of the United States of America et al. by *Gregory G. Garre, Roman Martinez*, and *Daryl Joseffer*; for Princess Awesome, LLC, et al. by *Oliver J. Dunford, Molly Nixon, Joshua Robbins*, and *Ashley Torkelson Levine*; for Trade Scholars in Economics et al. by *Erica Hashimoto* and *John Peng*;

for the Washington State *Amici* by *Steven W. Fogg*; for Carla Anderson Hills et al. by *Roderick M. Hills, Jr.;* and for Peter W. Sage by *Thad M. Guyer*.

Briefs of *amici curiae* urging affirmance in No. 25–250 were filed in both cases for the American Watch Association et al. by *Jeffrey E. Sandberg*; for the Cato Institute by *Thomas A. Berry* and *Brent Skorup*; for Crutchfield Corp. by *Peter J. Brann* and *David Swetnam-Burland*; for Professors of U. S. Foreign Relations Law by *Paul B. Stephan, pro se*; and for 31 Former Federal Judges by *Elkan Abramowitz*.

*JUSTICE SOTOMAYOR, JUSTICE KAGAN, and JUSTICE JACKSON join only Parts I, II–A–1, and II–B of this opinion.